

example). The language to be used for taking evidence and writing the minutes is governed by Art. 14(3) EPC (language of the proceedings) and R. 4 EPC (derogations from the provisions on use of the language of the proceedings in oral proceedings) (Guidelines E-IV, 1.3 "Taking of evidence" – March 2022 version; see also chapter III.F.2. "Language of the proceedings"). Compare with T.1787/16, which touches upon the language of the proceedings and the wording of decisions in its detailed reasons while also making a number of references to the language of evidence.

Lastly, see T.2165/18 for a case involving a – highly unusual – request for a transcription of a witness's testimony in the language he had spoken (Polish), the minutes of the hearing being in the language of the proceedings (French). The board refused the request for transcription – and a request for correction of the minutes – as unfounded.

Cross-references: evidential matters permeate all aspects of patent law; it is thus recommended to refer also to the following chapters, which deal specifically with these matters: I.C.3.2.3 "Internet disclosures"; I.C.3.2.2 "Lectures and oral disclosure"; I.C.3.5. "Evidence"; I.C.3.5.1 "Burden of proof"; I.C.3.5.2 "Standard of proof"; I.C.3.5.2 c) "Internet – proof of the date of availability"; I.D.4.3. "Solving a technical problem"; II.A.2.2.2 "Burden of proof"; II.C.6.6.7 "Experiments"; II.C.6.8 "Post-published documents"; II.C.9. "Evidence"; II.E.5. "Evidence and standard of proof for allowing amendments and corrections"; III.A.2.3. "Causal link and the requirement of proof"; III.B.2.3. "Surprising grounds or evidence"; III.B.2.4.5 "Failure to consider evidence"; III.B.2.6.4 "Hearing witnesses"; III.B.2.7.1 "Facts and evidence put forward for the first time during oral proceedings in inter partes cases"; III.C.6.3. "Final date for written submissions in the preparation for oral proceedings and late submission of new facts and evidence – Rule 116 EPC"; III.E.4.4. "Substantiation of the request for re-establishment"; IV.B.2.6.5 "Fresh argument based on grounds and evidence communicated beforehand"; IV.C.4.6.2 "No legal basis for disregarding late-filed arguments in opposition proceedings"; V.A.4.4.6 g) "Late-filed evidence of a public prior use – not admitted"; V.A.4.5.11 a) "Late submission of new facts and evidence contrary to the principle of fair proceedings and procedural economy"; V.A.5.5.3 "Late-filed documents and evidence"; V.A.5.13.6 "Public prior use"; III.O.2.6. "Evidence for and effect of a transfer"; IV.C.2.2.8 "Indication of facts, evidence and arguments – substantiation of grounds for opposition"; IV.C.2.2.8 i) "Alleged public prior use"; IV.C.3.4.5 "Examination of fresh facts and evidence related to a fresh ground"; V.A.9.8. "Remittal for hearing of witness"; V.B.3.6.4 "Minutes as evidence that the objection was raised". See also Guidelines E-IV "Taking and conservation of evidence" – March 2022 version.

2. Admissible evidence

2.1. Non-exhaustive list of admissible means of evidence

Art. 117(1) EPC does not contain an exhaustive list of admissible evidence, only mere examples. Parties to the proceedings are thus free in their choice of evidence. **Any kind of evidence** is admissible during proceedings before the EPO (T.482/89, OJ 1992, 646).

The EPC does not provide that certain questions of fact may only be proved by certain forms of evidence. Questions of fact must be settled on the basis of any credible information available (see e.g. J 11/88, OJ 1989, 433).

2.2. Distinction between the admissibility of evidence and its probative value

The admissibility of evidence should be clearly **distinguished** from the weight of evidence: whereas admissibility involves the question whether a piece of evidence should be considered at all, the probative value of evidence refers to the question whether the evidence to be considered provides sufficient proof of the alleged facts (see e.g. T 1698/08 with regard to a document, T 1363/14 and T 838/92 with regard to witnesses).

The allegation that a witness might be biased does not itself render the testimony inadmissible; rather, suspicion of bias is a matter to be considered during the evaluation of evidence (T 838/92). The principle of free evaluation of evidence applies only once evidence has been taken and cannot be used to justify not taking evidence offered (T 2238/15).

Assessing the evidence is part of the process of ascertaining whether the opposition is well founded in substance (T 234/86; along the same lines T 353/06, T 1194/07). No EPC provision requires that an alleged prior use must actually be proven within the opposition period in order to substantiate the allegation (T 1363/14, T 2238/15).

The board in T 885/02 observed that the opinion of an expert does not necessarily reflect the view of the skilled reader for various reasons. Those **experts** who were in the case at issue **eminent scientists** had their own experience which was not necessarily common general knowledge. Those observations did not mean that those declarations were to be disregarded.

In T 1551/14, after the first oral proceedings the patent proprietor had filed a new auxiliary request in which the subject-matter of the two independent claims had been limited by a new feature. After the summons to a second round of oral proceedings, and within the period fixed under R 116 EPC, the opponent had filed a statutory declaration from a witness who had already been heard and that this witness be heard again. Among other things, the board held that not even **contradictions with previous submissions** – which it did see in the case in hand – could justify refusing from the outset to admit submissions that were a legitimate reaction to a change in the counterparty's case.

2.3. Freedom of choice when selecting evidence

Under Art. 117(1) EPC, parties are free to choose what kind of evidence they present. In particular, they can make use of any of the means of evidence listed in that article (T 142/97, OJ 2000, 358). In T 1710/12, in the board's view, Art. 117(1) EPC gives **no order of preference** regarding the means of giving or obtaining evidence in proceedings before the EPO and it remains the **free choice of a party** to rely on the hearing of a witness (Art. 117(1)(d) EPC) or on production of a sworn statement in writing (Art. 117(1)(g) EPC). For other findings that witness testimony does not necessarily carry

less weight than documentary evidence, see also [T.918/11](#), [T.2565/11](#) and [T.441/04](#) (in which, however, the board first observed that documentary evidence was generally preferable to witness testimony for proving long-ago events).

In [T.329/02](#), the board found that it was not in keeping with good procedural practice for an opposition division not to take up an opportunity to hear a witness in evidence on a disputed matter that was highly relevant to the legal validity of the contested patent, and instead to require written declarations in place of the oral evidence.

See also chapter [III.G.3.3](#) "Right to be heard" below.

2.4. Witness testimonies and expert opinions

2.4.1 Hearing witnesses

By way of introduction to this topic, the following sets out some of the principles that have emerged from the case law reported in the sub-sections below. The EPC requires **clear requests** with regard to testimonies which a party wishes witnesses to give. A party who wishes to adduce witness evidence should indicate what **factual details** it wishes to prove by this means. The function of a witness is to corroborate what has been alleged and not to fill in the gaps in facts. Additional clarifications provided by a witness to close a potential gap in the documentary evidence on file cannot be considered per se new facts; hearing a witness would otherwise be futile. The parties must be given an opportunity to comment on the results of the witness hearing. The EPC does not preclude the parties to the proceedings from offering their employees as witnesses. An allegation that a witness might be biased does not in itself render their testimony inadmissible; rather, suspicion of bias is a matter to be considered when evaluating the evidence. All the means of giving or taking evidence covered by [Art. 117 EPC](#) are subject to the discretion of the department concerned but if the evidence offered is decisive for proving contested facts on which the case turns, the department must, as a rule, order that it be taken.

a) Role of witnesses and wording of request

It is the function of a witness to corroborate what has been alleged ([T.543/95](#)) and not to fill in the gaps in facts brought forward to support the case ([T.374/02](#); confirmed more recently in e.g. [T.1100/07](#), [T.1028/11](#) and [T.2054/11](#)). It is necessary that a party who wishes to adduce evidence by means of a witness should indicate what **factual details** it wishes to prove by this means ([T.374/02](#)). The principle of free evaluation of evidence also applies to the hearing of witnesses under [Art. 117\(1\)\(d\) EPC](#) ([T.482/89](#), OJ 1992, 646).

The EPC requires **clear requests** with regard to testimonies a party wishes witnesses to give, since the responsible department of the EPO must issue a decision regarding the taking of oral evidence (see [Art. 117\(1\)\(d\)](#) and [R. 72\(1\) EPC](#)). The board in [T.374/02](#) was of the opinion that the "implicit offer of witnesses" did not specify what should be able to persuade the board to evaluate the evidence already existing in the file differently. Witnesses were meant to corroborate the facts, not to fill in gaps in the facts and arguments. The lack of an indication of the facts which were to be proven by testimonies

of the three persons mentioned meant that the necessary conditions for the hearing of witnesses did not exist in the case before the board (other examples: T 2054/11; T 703/12, general reference to the party's submissions in opposition; T 1570/14, implicit request and requirements of Art. 12(2) RPBA 2007). T 1028/11, cited below, deals with a – justified – refusal to hear a witness and an alleged infringement of the right to be heard; T 30/12 deals with a refusal to rehear a witness.

Additional clarifications provided by a witness to close a potential gap in the documentary evidence on file cannot be considered per se new facts; hearing a witness would otherwise be futile (T 2565/11, T 660/16).

The boards in T 1363/14 and T 2238/15, ruling on alleged prior use, held that the opposition division should have ordered the hearing of the witnesses requested by the opponent to substantiate the facts set out in detail in the notice of opposition (see also T 1553/07 and chapter IV.C.2.2.8.i) "Alleged public prior use").

b) Relationship between witness and party

The EPC does not preclude the parties to the proceedings from offering their **employees** (see e.g. T 482/89, OJ 1992, 646; T 830/90, OJ 1994, 713; T 443/93, T 937/93, T 505/15 on assessing credibility in view of a bonus element in an employee's remuneration, and T 523/14 on written statements) or **clients** (T 575/94) as witnesses. See also T 327/91 (general manager of one party), T 558/95, T 64/13 cited in this chapter III.G.2.5. concerning statements in writing, and T 508/00 in chapter III.G.3.2.8 on when evidence should be submitted. The credibility of witnesses cannot be impugned merely because they had a **business relationship** with a party (J 10/04, referring to several other decisions). The allegation that a witness might be biased does not itself render the testimony inadmissible; suspicion of bias is rather a matter to be considered during the evaluation of evidence. The parties must be given an **opportunity to comment** on the results of the witness hearing (T 838/92; on this point also T 582/90).

In the context of an alleged oral disclosure (lecture), evidence from the lecturer and a member of the audience, provided by them in the form of both affidavits and oral testimony, was not considered by the board in T 2003/08 of 31. October 2012 to prove beyond reasonable doubt that the subject-matter of the claim was disclosed during the lecture; the board also observed that relations with the appellant-opponent's company could possibly have influenced their objectivity. In contrast to the opposition division the board considered it appropriate to hear the witnesses because their testimony **could affect the outcome of the proceedings**. The transcript of the witness hearing contained a point concerning their relationship to the appellant-opponent.

See also in this chapter III.G.2.5.2 "Relationship between witness and party" and III.G.4.2.2.a) "Credibility of allegedly kinked witnesses".

c) Statutory declarations and hearing witnesses

One object of producing written statements – which are an admissible form of evidence – is to avoid having to call those who made them as witnesses (T.674/91; see, however, T.474/04, in which it was held that the department of first instance ought to have heard the person who had made the written declaration in question, *infra* in this chapter III.G.2.5.3).

If the Receiving Section had considered the circumstances described in the witness statement very unlikely, it ought to have heard the witness personally in order to evaluate her credibility (J.10/04).

d) Ranking of means of evidence

The board in T.918/11 (prior use – long-ago events) considered that the opposition division's approach, that documents are of a more conclusive evidentiary value than witnesses, had no basis in the EPC, Art. 117 EPC containing **no ranking** of the means of evidence listed in it. The board was also of the opinion that the application of the standard of proof "beyond reasonable doubt" did not justify disregarding the testimonies.

See also T.1710/12 in chapter III.G.2.3; see also in this chapter III.G.4.2.1.

e) Hearing a witness before a national court

Under Rule 120 EPC, any party, witness or expert summoned to appear before the EPO can request authorisation to be heard by a competent court in the state in which they are resident (see, for example, T.582/90 and, by contrast, T.827/99, in which the witness's hearing by a national court was considered unnecessary).

In T.1043/93 a notarial statement by Italian witnesses duly summoned but not present was produced on the day of the oral proceedings before the board, with their age cited as the excuse for their failing to appear. The board observed that their age had already been known to the party and that the witnesses had not requested to be heard by the competent court of their country of residence (R.72(2)(c) EPC 1973, now R.118(2)(d) EPC).

In T.1551/14, the issue of the credibility of the witness, one of the appellant's employees, was critical since the points made by the witness in a statutory declaration regarding the new auxiliary request were of major importance for its patentability and had previously only been supported by that statutory declaration. For the board, this issue could only be settled by hearing the witness again, if necessary under oath before a national court (R.119 and 120(2) EPC). The case was remitted with an order to hear the witness in question.

Art. 131(2) EPC provides the basis for evidence to be taken by national courts or other competent authorities of contracting states (see also R.118(2)(d) EPC, R.120 EPC, R.150 EPC, and Guidelines E-IV, 3 – March 2022 version).